Notification Waiver Determination

Ochre Health - Health E Medical & Health E Allied Services, Vic

Acquisition	Ochre Health Pty Limited (**Ochre Health**) applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in Health E Medical Pty Ltd (**HEM**) and Health E Allied Services Pty Ltd (**HEAS**) (collectively, **Health E**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	23 October 2026

Parties to the Acquisition	The acquirer, Ochre Health, supports independent doctors to provide general practice medical services around Australia. Ochre Health currently operates 72 medical centres and urgent care clinics located in the ACT, NSW, Queensland, Tasmania and Victoria, but not in greater Geelong, Victoria. Ochre Health Group's medical recruitment business, Ochre Recruitment, also works with hospitals and medical practices across Australia to source and place locum and permanent doctors across a range of specialities. Ochre Health is majority owned and controlled by Genesis Capital, an Australian-based private equity firm that invests in businesses operating in the healthcare sector. The target, Health E, operates a general practice medical clinic in Geelong West, Victoria (the **Geelong West clinic**). HEM provides facilities and administrative services to independent general practitioners and other medical and allied health providers from the Geelong West clinic. HEAS offers administrative services to third party allied health service providers that operate from the Geelong West clinic. Ochre Health does not currently offer administrative services to third party allied health service providers similar to those provided by HEAS, save for as an ancillary service as part of its operation of its existing general practice medical centres.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application the ACCC considers that the Acquisition is unlikely to give rise to any material

	lessening of competition. In particular, there is no overlap in the supply of general practice medical services, or in the supply of administrative services to third party specialist medical providers, in the Geelong area. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act